PURCHASE ORDER

Vendor Name	: MARC ELECTRO INFRA PVT LTD	**Plant Name**	: RBPL
Address	: 205, Vice Regal, 15, Punit Nagar, Old Padra Road, Vadodara Gujarat 390015 India	**Bill.Address**	: District: BikanerGround Floor , Bap bikampur roadVillage Bikolai ,Bajju Khalsa RajasthanRajasthan 334305 India
Telephone	:	**GSTIN**	: 08AAOCR1304B1ZS
Fax	: 9825437364		
GST	: 24AAICM8098H1Z0		

Purchase Order : 8720000151 **Order Date :** 12.02.2026

Email : anand_shah@marc.net.in **Contact Person :**

Quotation Reference No & Date :

Project Reference : Rajasthan BESS Pvt Ltd

Delivery Address :

Subject : The Supply of 220KV Cable termination kit at RBPL BESS Pvt. Ltd.

Sr. No	Material No	Description	Qty	UOM	Basic Rate	Amount (INR)
10	C-TK-1C-1200	220KV TERMINATION KIT SUITABLE FOR 1C X	7.000	NO	820,000.00	5,740,000.00
					Total	**5,740,000.00**
					IGST	1,033,200.00
					Total Value (INR)	**6,773,200.00**

Amount in Words : Sixty Seven Lakh Seventy Three Thousand Two Hundred Rupees only.

Terms and Condition

With regards to the above-mentioned subject, references, correspondences and discussions held with you and your company officials, Rajasthan BESS Private Limited ("Buyer") is pleased to issue this purchase order ("Order") to M/s Marc Electro Infra Pvt Ltd. ("Supplier") for the scope of supply provided herein, and in accordance with the terms and conditions outlined in this Order.

Hereinafter, the Buyer and Supplier may individually be referred to as a "Party" and collectively as "Parties".

1. Scope of Supply

1.1 The Supplier agrees to manufacture, sell and deliver to the Buyer, 220KV Cable termination kit as per details mentioned above in this Order, (hereinafter referred to as "Material(s)"), in accordance with the terms and conditions of this Order. The Material(s) shall be fully compliant with the specifications set out in this Order ("Technical Specifications") and the characteristics specified in the technical document as agreed by both Parties.

1.2 The scope of work to be carried out by the Supplier includes, but not limited to design, engineering, manufacturing, testing, packing, forwarding and delivery of Material(s) as per its technical specification.

2. Effective Date of Order: -

2.1 This Order shall come into effect from the date of this order ("Effective Date")

3. Delivery Schedule and Liquidated Damages: -

3.1 The Material shall be delivered by March 2026 ("Delivery Schedule"), subject to issuance of the Manufacturing Clearance (MFC) by the end of January 2026, in case of any delay in the MFC, delivery timelines shall increase proportionately. Upon successful inspection and issuance of the Dispatch Instruction and Quality Clearance Note by the Buyer, it shall be the responsibility of the Supplier to ensure prompt and expeditious

dispatch and delivery of the Material to the designated project site, in line with the approved delivery plan and in coordination with site requirements. Freight and Insurance charges to site are included in the Order Value. Drawings for submission for approval should be submitted within 15 days of the Notice to Proceed mail.

3.2 In the event of delay in delivery beyond the agreed delivery schedule, Liquidated Damages (LD) shall be levied at the rate of 0.5% of the basic undelivered value per week of delay, subject to a maximum of 5% of the total undelivered value. This LD shall be applicable without prejudice to other rights and remedies available to the Buyer under the Order.

4. Order Value:

4.1 The total value for the above-mentioned scope of supply and deliverables under this Order shall be INR 67,73,200/-(Rupees Sixty-seven Lakh Seventy-Three Thousand Two Hundred Only) (hereinafter referred to as "Order Value"). The above Order Value inclusive Goods and Service Tax (GST). The Order Value is inclusive of Goods and Services Tax (GST).

4.2 The Order Value is based on basic Unit Price as mentioned hereof, which shall remain firm for the entire period during which the Material(s) are supplied and the scope of supply and deliverables under this Order are completed / performed. No escalation on any account shall be permitted for the aforesaid period or till the end of the extended period, if any.

5. Taxes & Duties:

5.1 The Order Value is inclusive of Goods and Service Tax (GST).
5.2 The introduction of new applicable taxes or any variation in existing applicable taxes and duties after the Effective Date up to completion of supply under this Order or termination of this Order, whichever is earlier, shall be to account of "Buyer" at actuals against satisfactory documentary evidence.
5.3 Income Tax applicable to the Supplier shall be deducted from any payment made to Supplier and necessary TDS Certificates will be issued by "Buyer" to Supplier.

6. Payment Terms:

6.1 Payment for the supply shall be done as per below milestone

6.1.1 100% of the Order Value for the Supply portion shall be paid through an irrevocable Letter of Credit (LC) with a usance period of forty#five (45) days. The Performance Bank Guarantee (PBG) shall form part of the LC documentation. The LC shall be opened by the Buyer after issuance of the inspection call. Alternatively, if LC is not opened, 100% of the Order Value shall be released before dispatch after completion of inspection and issuance of QCN and submission of Pro-forma invoice.

6.2 Supplier shall provide to Buyer, the following supporting documents along with dispatch of material:

a) GST Invoice
b) Warranty Certificate
c) E-way bills (Road permits)
d) Copy of Lorry receipt
e) Inspection Report (if applicable)

7. Supplies inspections & Testing: -

7.1 The Supplier shall submit the detailed test procedures to be approved by the Buyer for conducting the Test.
7.2 All the Material(s) shall undergo Factory Acceptance Test/ Routine test/ Acceptance Test as per technical specifications and discussions with the Buyer.
7.3 Pre-dispatch inspection for quality and quantity shall be carried by Buyer (or Buyers nominated representative / or any other authorised officials) as per approved quality plan and an inspection certificate shall be issued in this regard. In case of inspection waiver, an "Inspection Waiver" certificate shall be issued by Buyer prior to dispatch. This certificate (Inspection or Inspection Waiver) along with the relevant certificates and internal test

reports shall be submitted by the Supplier to the Buyer at the time of delivery of Material(s).
7.4 For Material(s) not being delivered on Ex-works basis, Buyer shall also conduct a physical inspection after receipt of the Material(s) at the designated delivery location and thereafter issue a Material Receipt Note ("MRN") to the Supplier conveying all dents or damages that may have arisen during transit. Upon receipt of such notice from the Buyer, Supplier shall within 5 business days replace/ rectify/ repair such damages to the satisfaction of the Buyer.
7.5 It is expressly clarified that acceptance of Material(s) at any of the points above will in no way prevent Buyer for its rightful claim under the Order.

8. Quality

8.1 The Supplier hereby warrants to the Buyer that the material selection and manufacturing have been and will be carried out and that it shall otherwise perform its obligations under this Order:
8.1.1 using the skill, care and diligence to be expected of appropriately qualified and experienced contractors, professional engineers and constructors with experience in works of type, nature and complexity similar to the works.
8.1.2 in accordance with good modern engineering principles and practices of a standard equivalent to those adopted for Power Plants / transmission lines using similar technology internationally.
8.1.3 using only materials and goods which are new and unused and so that such materials and goods and the standards of all workmanship, manufacture and fabrication shall conform in all respects to the standards and codes of practice referred to in the Material Specification and existing as on the date of the Order;
8.1.4 so that each item of supplies shall, upon completion of Order, be in accordance with all relevant requirements of the Order unless otherwise notified in writing by the Buyer or altered in accordance with a variation instructed by the Buyer.
8.1.5 so that the Material(s) shall be capable of being operated in accordance with the requirements of the Order and good industry practice consistent with the Suppliers operating and maintenance manuals; and so that the supplies shall comply with the provisions of any applicable law, regulation, rule, direction of a governmental in effect on the date of completion of the Order.
8.2 The Supplier warrants that the Material(s) shall be new and in accordance with the Technical Specifications and free from Defects (as defined in Clause 9).
8.3 The acceptance of the Material(s) by the Buyer shall in no way relieve the Supplier of its obligations under the Order.

9. Warranty/ Defect Liability Period: -

9.1 The Supply shall be free from Defects (defects in design, engineering, equipment, materials and workmanship of the system supplied) and shall be warranted for a period of 18 (Eighteen) months from the date of commissioning or 24 (Twenty-Four) months from date of supply of material, whichever is earlier.
9.2 The Suppliers shall replace / repair/ modify any defective parts in the Material(s), supplies / system during the warranty period free of cost to the Buyer. All costs in relation to such repair or replacement including with limitation dismantling from site, deputation of service engineer, testing for the defective portion if required, delivery to the site, deployment of any special tool & plant for such rectification etc shall be to the account of the Supplier. Such replaced defective parts shall be returned to the Supplier at site after replacement(s) have been completed by the Supplier. The replaced/modified parts or Material(s) shall have warranty of 12 months from the date of such replacement/modification plus the balance time period of original warranty.
9.3 In the event, Supplier fails to `repair, replace or rectify such defect in a timely manner, then Buyer may proceed to carry out such replacement or rectification either by itself or through a third party at the risk and cost of Supplier. Buyer shall have the right to recover such costs from the performance security of the Buyer, if any provided under the Order.
9.4 In case of those defective parts which are not repairable at site but are essential for the commercial operation of the Supplies, the Supplier and the Buyer shall mutually agree to a programme of replacement or renewal which will minimize disturbance, disruption or interference, in the operation of the Supplies. Notwithstanding anything contrary, the Supplier shall continue to be liable for any latent defects arising in respect of the Material(s) for a period of 5 (five) years after the expiry of Warranty Period and this liability shall survive the expiry or termination of the Order whichever is earlier.

10. Packing and Marking: -

Supplier shall make supply of Material(s) in packing worthy to withstand the requisite mode of transportation. The general specification of marking in respect of material shall be as per good industry practices and as per the requirement of the Buyer.

11. Transfer of Title and Risk: -

Title shall transfer from supplier to Buyer at the Ex works of the Supplier and all risks in Material(s) shall transferred from the Supplier to the Buyer upon receipt of the Material(s) at the designated location / site in accordance with the terms and conditions of this Order.

12. Insurance: -

12.1 The Supplier shall at his own expense take out and maintain in effect, during the performance of this Order, the insurances set forth below in the sums and with the deductibles and other conditions specified herein.
12.2 The Supplier will arrange for transit insurance of material included under the scope of this Order, to cover all risks during the Material transit (regardless of mode of transportation) between Suppliers manufacturing facility / warehouse and designated delivery location.
12.3 The insurance shall be on full replacement value basis (including transit and insurance cost) covering entire material value with no escalation cost.
12.4 The Buyer shall also be named as co-insured under the insurance policy taken out by the Supplier except for third party liability.
12.5 Notwithstanding the insurance requirements mentioned above, it would be the Suppliers responsibility to take and maintain adequate insurance cover. If at any point of time during execution of the Order, the insurance policies are found to be inadequate, the Supplier shall take fresh insurance policies meeting aforesaid requirements, to the satisfaction of the Buyer.
12.6 Any risk of loss or damage to the Material(s), material and/or spares during loading, transportation and until safe delivery of the Material(s) in accordance with this Order, at the designated delivery location, shall be to the account of the Supplier. The Supplier shall be responsible for preference of all claims and make good the damages or loss by way of repairs and/or replacement of Material(s) damaged or lost. Notwithstanding the extent of insurances cover and the amount of claim available from the underwriter, the Supplier shall be liable to make good the full replacement/rectification of all the Material(s) and shall ensure their availability as per ordered requirement without any additional financial liability to the Buyer.

13. Assignment and Sub-Contracting: -

13.1 Supplier shall not be entitled, without the specific prior written consent of the Buyer to assign, or transfer any of its rights and/or obligations, in whole or in part, arising from the Order, or sub-contract any scope of supply to any third party. Any sub-contracting by the Supplier shall not relieve the Supplier from its obligations of this Order and for which the Supplier shall remain wholly responsible and liable to the Buyer.

13.2 The Supplier shall, within 1 (one) week from the Effective Date of this Order, deliver to Buyer a major sub-suppliers list for review. The Supplier shall furnish all particulars of such sub-suppliers.

13.3 The Supplier shall furnish to the Buyer copies of technical ordering specifications and principal commercial terms (un-priced) of the sub-contracts as the Buyer may request from time to time.

13.4 The Supplier shall be solely responsible and liable for all the acts, omissions, defaults and neglects of all sub-suppliers and all its and their employees, representatives, agents, or workmen of any of them as fully as if they were the acts, omissions, defaults or neglects of the Supplier under the terms of this Order. Supplier shall be the single point of contact for the Buyer irrespective of any sub-contracts entered by the Supplier.

13.5 The Supplier shall ensure that all sub-contracts are made in writing.

13.6 Each instrument evidencing any sub-contract shall provide that, pursuant to terms in form and substance satisfactory to the Buyer, the rights of the Supplier under such sub-contract are assignable to the Buyer, its successors and assigns upon the Buyers written request following termination of this Order.

14. Compliance of Laws, Standards and Codes: -

14.1 All Material(s) and supplies under this Order shall in addition to compliance with the Annexures, Material Details and Scope of Supply, shall also comply with the requirements of the relevant international, Indian laws, regulations, rules, standards and codes including safety codes. Supplier shall at all times comply with all applicable laws, regulations, rules, ordinance, judgment, order, decree, directive, guideline, policy, requirement, or other governmental restriction or any similar form of decision, or determination by, or any interpretation or administration of any of the foregoing by, any statutory, governmental, local, municipal or regulatory authority whether in effect as of the date of this Order or thereafter and in each case as amended from time to time ("Applicable Laws"). Nothing contained in the Order shall be construed to relieve the Supplier from its obligation to comply with the aforesaid requirements. The Supplier shall fully acquaint himself with these requirements and shall ensure compliance with them, without any liability to Buyer.

15. Suppliers Representations and Warranties

15.1 The Supplier hereby represents and warrants that:
(a) it is duly organized, validly existing and in good standing under the laws of India and it has full power and authority to execute this Order and deliver and perform its obligations hereunder and to carry out the transactions contemplated hereby.
(b) it holds all valid licenses, registrations and permissions that are required under the Applicable Laws for supplying the Material(s) in terms of this Order.
(c) It will comply with Applicable Laws in performing its obligations including procurement of licenses, permissions, approvals, certificates, and payment of taxes, if required; it shall perform its obligations hereunder in a lawful, proficient and diligent manner.
(d) it has the financial standing and capacity to undertake the performance of this Order and is not adjudged insolvent by any competent court.
(e) all the information furnished by the Supplier to the Buyer, is true and correct.
(f) the execution, delivery and performance of this Order will not be in contravention of, in conflict with, result in the breach of, or constitute a default under any of the terms of its constitutional documents or any Applicable Laws or any other agreement entered by Supplier with any other party;
(g) the supplies made by the Supplier shall be in full conformity with the requirements of this Order and free of defects and deficiencies (including latent defects) and that the supplies shall be fit for the purposes and uses intended and capable of operation in the manner contemplated hereby and in accordance with this Order;
(i) it shall duly and satisfactorily perform its obligations hereunder, during the term of this Order; it will provide regular updates at such intervals as may be specified by Buyer with respect to the said obligations.
(j) it shall ensure that the supplies made under this Order are of high quality, standard and performance which must be commensurate with the expectations of Buyer.
(k) it shall comply and act in accordance with the rules, regulations and internal policies of the Buyer including its Code of Ethical Business Conduct (as may be provided by the Buyer or as published on its website).
(l) it shall observe highest standards of integrity, not influence any official of the Buyer in any manner, not indulge in any unethical practice and comply with Applicable Laws pertaining to the same including those relating to anti-bribery and anti-corruption.
(m) no criminal proceedings/investigations are initiated or pending against it or its directors, promoters, or partners and they are not subject to any criminal liability or disqualification.
(n) it shall not use the name and / or logo of Buyer in any manner either for credit arrangements or otherwise.
(o) it shall not do or cause to be done anything, which is prejudicial to the interest of Buyer or whereby the business or reputation of Buyer may be injured or damaged.

16. Replacement of Defective Parts and Materials: -

16.1 If during the progress of the supplies, the Buyer shall decide and inform in writing to the Supplier, that the Supplier has manufactured any supplies or part of the supplies unsound and imperfect or has furnished any supplies inferior to the quality specified, the Supplier on receiving details of such defects or deficiencies shall at his own expense within seven (7) days of his receiving the notice, or otherwise, within such time as may be reasonably necessary for making it good proceed to alter, reconstruct or remove such supplies or its part and furnish fresh supplies up to the standards of the specifications. In case the Supplier fails to do so, the Buyer may on giving the Supplier seven (7) days notice in writing of its intentions to do so, proceed to remove the portion of the supplies so complained of and at the cost of the Supplier perform all such work or

furnish all such supplies provided that nothing in this clause shall be deemed to deprive the Buyer or affect any rights under the Order which the Buyer may otherwise have in respect of such defects and deficiencies.

16.2 In case of any damages (un repairable at site) of any supplies; or in case of any defective Material(s) or supplies not complying to specified quality parameters; or in case of any short supply of Material(s) or additional supply of Material(s) are required to enable the supplies comply with its functional requirements, the total replacement cost including without limitation all charges towards freight, duties, taxes and clearances shall be borne by the Supplier.

17. Risk Purchase: -

17.1 Upon Suppliers default in adhering to the terms and conditions of this Order, the Buyer reserves the right to terminate or discontinue the supply at any point of time during the execution of Order.
17.2 In the event of aforesaid default or as set out herein below, to the satisfaction of the Buyer, Buyer reserves the right to make alternative arrangements as deemed necessary at the risk and cost of the Supplier without assigning any reason whatsoever. The Buyer shall be entitled to exercise this right
if the Supplier:

a) Neglects/fails repeatedly to execute this Order or any part item of the Order at any point of time in the time and manner as required hereunder, including but not limited the Delivery Schedule.
b) Refuses or neglects to comply with any reasonable instructions given to Supplier or communicated by the Buyer in connection with the Order.
c) Contravenes or fails to comply with the provisions of the Order including but not limited to the Material Specifications.
Buyer may give notice in writing to Supplier to make good the aforesaid default, neglect, failure, refusal or contravention on part of the Supplier.

If Supplier fails to comply with the notice within fifteen (15) days from the date of notice thereof, then and in such case, the Buyer shall be at liberty to employ other agencies and forthwith make good the aforesaid at the risk and cost of the Supplier.
Or
If the Buyer thinks fit, it shall be entitled without prejudice to any other right it may have under the Order, to take the Material(s) wholly or in any part, out of Suppliers scope and reorder the required supplies with other supplier(s) to complete the performance of this Order or any part thereof.
And
Buyer shall be entitled to retain supply of any balance part of Material from the Buyer, which may otherwise be due in the Order as the case may be. If the cost of completing the Order or executing a part thereof, owing to Suppliers default, neglect, failure, refusal or contravention of / in respect of the Order, as aforesaid, exceeds the balance which is due to Supplier under this Order then Supplier shall pay such excess amount to the Buyer. Such payment of excess amount shall be independent of the liquidated damages for delay, which Supplier shall continue to be liable to pay if there was delay in supply of Material(s) as per the Delivery Schedule.

17.3 The costs borne by Buyer while exercising its right under this Clause shall be to the Suppliers account and the same shall be deducted from Suppliers invoice with additional 10% administrative charges over and above the risk purchase cost.

18. Limitation of Liabilities: -

18.1

a. Neither Party shall be liable to the other Party for any special, indirect ,incidental ,punitive or consequential damages of any nature (for any cause whatsoever) including compensation ,reimbursement or damages on account of the loss of present or anticipated profits or revenues ,loss of goodwill ,loss of opportunity ,generation loss or downtime ,regardless of whether such party has but not limited to loss of use, loss of production, or loss of profits or into been advised of the possibility of such damages or
not, expect for losses incurred from wilful misconduct and gross negligence.

b. Now withstanding any provision of this contract, the cumulative maximum liability of the supplier to the purchaser under or in connection with this contract, will be limited to 100% of contract price provided that the supplier#s aggregate liability under this clause (b) shall not apply and shall be;
1) Uncapped and without any limitation in case of the following:
i. Any claims or losses incurred by purchaser on account of any non-compliance or violation of Application Laws and/or Approvals or fraud.
ii. Bodily injury, sickness, dieses, or death of any person attributable to negligence wilful act breach of contract by supplier or its personal, agent, Sub-Supplier and as are finally determined by a court of competent.
iii. Loss of physical damages to real property of purchaser or any thirst party attributable to negligence, wilful act or breach of contract by supplier and as are finally determined by a court by competent jurisdiction.
iv. Cost of remedying any defects under this contract.
v. Any infringement of the intellectual Property Rights; and

c. This liability clause shall prevail over any conflicting or inconsistent provisions contained in any of the documents comprising the contract, expect to the extent such conflicting inconsistent provisions further restricts Supplier#s Liability.

19. Intellectual Property Rights and Ownership of Design, Data and Documents: -

19.1 Supplier acknowledges and agrees that the Buyer will be the exclusive owner of all rights, title and interest including intellectual property rights contained in any document, data, know-how, designs, deliverables and reports which may be created or developed in respect of this Order. All existing, base or background intellectual property rights of the Buyer shall continue to be exclusively owned by the Buyer. Supplier should not use the designs (including minor modification) or pass it on to a third party, in respect of any of their or their associates projects without prior permission in writing from the Buyer.

20. Secrecy and Confidentiality: -

20.1 The Supplier shall treat the details of the Order and any information, provided /disclosed or which will be provided/disclosed by the Buyer to the Supplier, either written or oral or in any form of media or which has been acquired or will be acquired by the Supplier, including but not limited to designs, drawings, specifications, technical information, documents, know-how, designs, manufacturing processes, data, financial information and other technologies, whether patentable, copyrightable or susceptible to any other form of protection, in relation to the Order ("Confidential Information") strictly as private and confidential, hold it in a secure place and not publish, disclose, copy, reproduce or distribute any of it or otherwise make it available to any person other than an authorized representative of Supplier, the same or any particulars thereof (save insofar as may be necessary for the purposes of the Order), without the previous written consent of the other Party, provided that nothing shall prevent the publication or disclosure of any information, that Supplier can prove that, has come within the public domain otherwise than by breach of this Clause, or was received from a third party free to lawfully disclose such information to Supplier, or was in the Suppliers lawful possession prior to receipt from the Buyer, as evidenced by written documentation, or is independently developed by the Supplier without the benefit of any of the Confidential Information as evidenced by written documentation, or is required to be disclosed to comply with legal mandatory regulations, a judicial or official order or decree, provided that written advance notice of such judicial action was timely given to the Buyer.

20.2 The Supplier shall itself and shall ensure that its authorized represenatitives, keep the Confidential Information securely and properly protected against theft, damage, loss and unauthorised access (including access by electronic means), during the term of this Order and thereafter, with at least the same degree of care that it applies to its own confidential information. The Supplier shall notify the Buyer immediately upon becoming aware that any of the Confidential Information has been disclosed to, or obtained by, a third party otherwise than as permitted by this provision. Notwithstanding dislcosure by Supplier to its authorized representatives, the Supplier shall be principally liable for any breaches of obligations contained herein by such authorized representatives.

20.3 Further upon expiry or termination of this Order or upon written request by the Buyer, whichever is earlier,

the Supplier shall itself and procure that its authorized representatives shall promptly, return to the Buyer all documents containing Confidential Information and permanently remove all Confidential Information from any computer, word processor, disk, memory stick or other device containing such Confidential Information, other than those that are automatically backed up in accordance with the Suppliers retention policies, which shall be accorded confidential treatment as provided herein.

21. Indemnification: -

21.1 Notwithstanding anything contained in this Order, the Supplier hereby indemnifies and holds harmless the Buyer and its directors, employees, officers, representatives and agents (the "Buyer Indemnified Parties") from and against any and all suits, actions or administrative proceedings, claims, demands, losses, liabilities, damages, costs, and expenses of whatsoever nature including attorneys fees and legal costs, which the Buyer may suffer as a result of any breach of the terms of this Order, or any negligence or wilful misconduct, or any misrepresentation on the part of the Supplier and/or its sub-suppliers, sub-contractors, employees, workers, representatives or agents.

21.2 The Supplier shall fully indemnify and save harmless and defend Buyer Indemnified Parties from and against any and all suits, actions, claims, demands, losses, liabilities, damages, costs, and expenses of whatsoever nature including attorneys fees and legal costs, that Buyer Indemnified Parties may suffer, incur or pay in connection with infringement (or assertions of infringement) of any patent rights, copyrights or other intellectual property rights, proprietary rights with respect of materials, designs, supplies, techniques, processes and information designed or used by Supplier in performing the Order or forming a part of the material.

21.3 If any proceedings are brought or any claim is made against the Buyer arising out of the matters referred to above, the Buyer shall promptly give the Supplier a notice thereof and the Supplier shall at its own expense forthwith take control of and conduct such proceedings or manage such claims and any negotiations for the settlement of any such proceedings or claims, however shall not act, take any decision or agree to anything, on behalf of Buyer, without the express prior written consent of the Buyer. If the Supplier fails to notify the Buyer within Seven (7) days after receipt of such notice that it shall take control of proceedings and claims, as aforesaid, then the Buyer shall be free to deal with the same at the risk and cost of the Supplier.

22. Force Majeure: -

22.1 Force Majeure means an event or circumstance or combination of events or circumstances beyond the direct or indirect control of the party affected (the "Affected Party") that: (i) is not attributable to the other party; (ii) could not be reasonably foreseen or prevented even upon the exercise of due diligence and good industry practices; including but not limited to:
22.1.1 act of God, including, but not limited to, earthquake, volcanic eruption, landslide, flood, cyclone, typhoon, tornado, or exceptionally adverse weather conditions which are in excess of the statistical measures for the last thirty (30) years;
22.1.2 war (whether declared or undeclared), invasion, armed conflict or act of foreign enemy, blockade, embargo, revolution, riot, insurrection, insurgency terrorist or military action.
22.1.3 radioactive contamination or ionizing radiation originating from a source in India or resulting from any other event of Force Majeure mentioned above, excluding circumstances where the source or cause of contamination or radiation is brought or has been brought into or near the site by the Affected Party or those employed or engaged by the Affected Party; or
22.1.4 Industry wide strikes and labour disturbances, having a nationwide impact in India.
22.2 Force Majeure shall not include (i) any event or circumstance which is within the reasonable control of the Parties and (ii) the following conditions, except to the extent that they are consequences of an event of Force Majeure:
22.2.1 Unavailability, late delivery, or changes in cost of the machinery, equipment, materials, spare parts etc. for the execution of the Order.
22.2.2 Delay in the performance of the sub-suppliers, subcontractors, representatives or agents
22.2.3 Non-performance resulting from normal wear and tear typically experienced in transmission materials and equipment.
22.2.4 Strikes or labour disturbance at the site of the Supplier.
22.2.5 Insufficiency of finances or funds with the Supplier, and

22.2.6 Non-performance caused by, or connected with, the Affected Partys negligence or
22.2.7 Intentional acts, errors or omissions, failure to comply with applicable law and breach of, or default under this Order.
22.2.8 Notwithstanding anything to the contrary, Parties acknowledge that they are aware of all Applicable Laws resulting from and relating to COVID-19. Accordingly, in addition to agreeing to comply with all such Applicable Laws, they shall not be entitled to claim COVID-19 as preventing, affecting or delaying the performance of their respective obligations hereunder unless such Applicable Laws are more onerous than the Applicable Laws as on date of this Order. Further, in the event of imposition of more onerous Applicable Laws or than those existing as on date of this Order, which prevents the Parties from carrying out their obligations as agreed herein, Affected Party shall be entitled to claim COVID-19 as preventing, affecting or delaying the performance of their respective obligations hereunder.
22.3 Effect of Force Majeure Event
22.3.1 Neither party shall be considered to be in breach of its obligations under the Order To the extent that performance of such obligation is prevented by any circumstances of Force Majeure, which arises after the Effective Date of the Order, provided that notice to this effect (as mentioned in the following paragraph) is given to the other Party, as soon as possible and in no event beyond the time period mentioned in the following paragraph. Each Party shall be responsible for the respective costs incurred by such Party as a result of or in relation to the occurrence of an event of Force Majeure or in respect of the actions to be taken by the Affected Party in respect thereof.
22.4 In case the Supplier wants to claim the occurrence of Force Majeure, the party shall send a notice within 7 seven days from the occurrence of the said event and once the said event ceases shall submit all the relevant documents and evidences (duly certified by the relevant Government departments and / or government authorities) which proves and establishes the occurrence of such event of the Force Majeure. Notwithstanding anything contained in this Clause, in case the relief under this clause is claimed by the Supplier, on the basis of which Buyer claims relief with competent authority under Transmission Service Agreement between the Buyer and its beneficiaries, however the same is rejected either fully or in part by the competent authority then Supplier will not be entitled to the relief under this Clause to the extent it is rejected/denied. The parties agree to put in best efforts, jointly while seeking relief with the Competent Authority.
22.5 Affected Party shall resume its obligations under the Order, as soon as such Force Majeure event ceases to exist.
22.6 The Delivery Schedule may be extended by a period of time not more than the period for which of interruption caused by an event of Force Majeure. However, if the Force Majeure continues for a prolonged period, then the Buyer shall have the right to terminate this Order in accordance with the terms hereof and make payment to the Supplier for the Material(s) supplied in accordance with this Order and to the satisfaction of the Buyer, as on the date of such termination.
22.7 Neither Party shall claim compensation for the loss thus incurred or any compensation from the other Party on account of an event of Force Majeure.

23. Suspension: -

23.1 The Buyer may, at any time, suspend and reinstate execution of performance the whole or any part of the scope of supply by the Supplier. Any orders for suspension or reinstatement of the scope of supply will be issued by the Buyer to the Supplier in writing. The time for completion of the supplies may be extended for a period equal to duration of the suspension or as agreed between Buyer and Supplier.
23.2 Upon the issuance of instructions to suspend the supplies as contemplated in this Order, the Supplier shall:
23.2.1 Suspend the scope of supply to the extent specified by the Buyer and store, preserve, protect and otherwise secure the Material(s)/part thereof affected, to the extent reasonably practicable in the circumstances.
23.2.2 Place no further subcontracts or purchase orders for materials, services, with respect to those parts of the material, supply of which is suspended, except to the extent expressly requested by the Buyer.
23.2.3 Use all reasonable endeavours to suspend the scope of supply, on the most favourable terms available to the Supplier including all subcontracts and purchase orders, to the extent affected by such suspension and otherwise to minimize the additional costs associated with such suspension.
23.3 At any time after such suspension, the Buyer may instruct the Supplier to resume execution of the suspended scope of supply. Upon receipt of such instructions, the Supplier shall examine the material affected by the suspension and shall remedy any deterioration or defect in or loss of such material that may have occurred during the suspension. The suspended supply shall resume as expeditiously as possible after the receipt of such withdrawal of suspension notice in accordance with the instructions of the Buyer in respect of the resumption.

23.4 If the suspension of supply is not attributable to Suppliers default, the Buyer shall pay to the Supplier, the price for the scope of supply completed against submission of documentary evidence and proof to the satisfaction of the Buyer. In case any payment for the supplies in progress is being considered, the Parties shall mutually agree upon the same, after taking into account any possibility of utilization of the WIP material by either of the Party.

24. Termination: -

24.1 In the event of a default or failure to comply with the terms, conditions, Material Specifications and requirements set out under this Order by the Supplier, to the Buyers satisfaction, the Buyer may, without prejudice to any other rights it may possess under this Order, give a notice to the Supplier stating the nature of the default and require the Supplier to remedy the same. If the Supplier fails to remedy or to take steps to remedy the same within fourteen (14) days of its receipt of such notice, then the Buyer may terminate the Order forthwith on account of cause.

24.2 The Buyer also reserves the right to terminate the Order with a written notice of fourteen (14) days, in the event:
(i) Supplier is unable to pay its debts or becomes insolvent, or an order or resolution is passed for dissolution / winding up of the Supplier.
(ii) Supplier fails to comply with Applicable Laws, or obtain / maintain any license, consent, permit, approval required under Applicable Laws for performance of this Order.
(iii)Supplier assigns this Order or any of its rights and obligations hereunder to a third party without prior written consent of the Buyer.
(iv)Supplier fails to meet the representations and warranties made by it under this Order or they are found to be false or incorrect.

24.2.1 Upon receipt of the notice of termination the Supplier shall at its own cost, either immediately or upon such date as is specified in the notice of termination,
24.2.1.1 Cease all further supplies, except for such supply as the Buyer may specify in the notice of termination for the sole purpose of protecting that part of the supplies already executed. Terminate all Subcontracts, except those to be assigned to the Buyer pursuant to paragraph below.
24.2.1.2 deliver to the Buyer the parts of the supplies executed by the Supplier up to the date of termination.
24.2.1.3 assign to the Buyer all right, title and benefit of the Supplier in respect of the supplied items as on the date of termination and as may be required by the Buyer pursuant to any Subcontracts executed between the Supplier and its Sub Suppliers.
24.2.1.4 Deliver to the Buyer all documents prepared by the Supplier as on the date of termination in connection with the material and return all Buyers documents including copies thereof in its possession.
24.2.2 The Supplier shall be entitled to be paid such amount towards the Order Value, for which the supply of Material(s) has been completed in accordance with this Order and to the satisfaction of the Buyer, as of the date of termination. Any sums due to the Buyer from the Supplier accruing prior to the date of termination shall be deducted from the amount to be paid to the Supplier under this Order.
24.2.3 The Buyer may terminate this Order for convenience at any point of time by giving the Supplier a written notice of thirty (30) days, to this effect. Clauses 24.2.1 and 24.2.2 shall apply mutatis mutandis to give effect to such termination under this Clause.
24.2.4 Surviving Obligations: - The termination of this Order:
(i) shall not relieve the Supplier of its obligations with respect to the confidentiality of information as set forth in this Order,
(ii) shall not relieve the Supplier of any obligation herein that is expressly stated to survive termination,
(iii) shall not limit or affect any provision of the Order expressly limiting the liability of the Supplier or releasing the Supplier from any liability, and
(iv) shall not relieve the Supplier of any obligations or liabilities relating to indemnity, warranty and latent defect arising under this Order on or before the date of such termination.

25. Arbitration: -

25.1 The Parties hereto shall endeavour to settle all disputes and differences relating to and/or arising out of this Order amicably.

25.2 In the event of the Parties failing to resolve any dispute amicably the same shall be referred to and finally resolved by arbitration in accordance with Arbitration & Conciliation Act 1996 with amendments thereto. Each Party shall be entitled to nominate an arbitrator and the two arbitrators so nominated shall jointly nominate a third presiding arbitrator. The arbitrators shall give a reasoned award.
25.3 The venue and seat of arbitration shall be Delhi and the language of the arbitration shall be English.
25.4 The Parties agree that any arbitration award shall be final and binding upon the Parties.
25.5 The Parties agree that, to the extent practicable, the Supplier shall continue to carry out its obligations under the Order even in the event a dispute is referred to arbitration. It is further clarified that Buyer shall be entitled to retain any sum or portion of Order Value, which has become due and payable, for any unfinished supplies or any subject matter under arbitration.

26. Governing Law and Jurisdiction: -

26.1 This Order shall be construed in accordance with and governed by the laws of India and the courts of Delhi, India shall have exclusive jurisdiction with respect to this Order.

27. General: -

27.1 Any amendment to this Order will only be with the mutual agreement of the Parties, shall be in writing and signed by authorized representatives of the Parties.

27.2 This Order does not in any respect make the Supplier an agent or a partner of the Buyer, nor does it establish any joint venture between the Parties or authorize the Supplier to transact any business in the name of the Buyer or to incur any obligation or liability for or on behalf of the Buyer.

27.3 Each Party confirms that it is acting on its own behalf and not for the benefit of any other Party. Notwithstanding this, all affiliates of Buyer and IndiGrid Investment Managers Limited (IIML) shall be entitled to benefit from this Order. If any provision or part-provision of this Order is or becomes invalid, illegal or unenforceable, it shall be deemed modified to the minimum extent necessary to make it valid, legal and enforceable. If such modification is not possible, the relevant provision or part-provision shall be deemed deleted. Any modification to or deletion of a provision or part-provision under this Clause shall only take effect in accordance with Clause 27.1 of this Order and shall not affect the validity and enforceability of the rest of this Order.

27.4 Failure or delay of either Party at any time to require performance of any provision of this Order shall not affect the right to require full performance thereof at any time thereafter and the waiver by either Party of a breach of any provision shall not be taken or held to be a waiver of any subsequent breach thereof or as nullifying or restricting the effectiveness of such provision.

27.5 This Order, including and together with any related annexures, sets forth the entire agreement and understanding between the Parties with respect to the subject matter hereof and supersedes and cancels all earlier discussions and negotiations of understandings, agreements, representations, warranties, whether written or oral, express or implied, between them excluding any specific assumptions to price as maybe notified by the Buyer to the Supplier.

28. General Covenants # Compliance with Code of Ethical Business Conduct

28.1 The Supplier acknowledges that by virtue of this engagement with the Group (as defined in Code of Ethical Business Conduct), it shall be considered an "Associate" in terms of the Code of Ethical Business Conduct ("Code of Conduct"). As an Associate, it acknowledges the responsibilities and commitment towards adherence with the principles and provisions set out in the Code of Conduct including the Anti-Corruption Compliance Policy. Accordingly, it hereby agrees and undertakes, as follows:

(a) It shall strictly comply with the provisions of Code of Conduct, without any exception.

(b) It shall maintain highest level of ethical business conduct and integrity while fulfilling each of its commitments.

(c) It shall duly adhere with all applicable laws, regulations, and Groups standards, including but not limited to those pertaining to anti-bribery and anti-corruption, anti-money laundering, economic sanctions, labour and industrial relations obligations, environment, health and safety, intellectual property rights, data privacy and all other applicable laws, regulations and Group standards.

(d) Any business transactions with the Group (i.e., contracts and payments) shall be documented accurately and promptly.

(e) It shall duly comply in good faith with provisions of the contracts entered with any Group entity.

(f) It shall not participate in any unethical collusion, arrangement or practices with any Group entity director, officer, employee, consultant or any other partner of the Group. Further, it shall not indulge in any unlawful or unethical behavior or attempt to induce anyone unlawfully for the benefit of any Group entity.

(g) It shall periodically disclose to Rajasthan BESS Private Limited any relationships and/or affiliations with any Group entity director, officer, employee, consultant, or their Relatives (defined hereinafter), in a formal letter to Rajasthan BESS Private Limited which shall be submitted to the Compliance Officer.

("Relatives" as used herein shall mean relatives of upto third degree, by consanguinity, affinity or legal adoption, including, the directors, officers, employees, or consultants spouse, parents, children (and their spouses), siblings (and their spouses), nieces and nephews (limited to children of a brother or sister) (and their spouses), grandparents, aunts and uncles (limited to brothers or sisters of a parent); and a domestic partner and his relatives of upto third degree, by consanguinity, affinity or legal adoption).

(h) It shall duly comply with the policy and rules relating to gifts or hospitality as envisaged in the Code of Conduct and as notified from time to time.

Kindly return us the duplicate copy of this Order duly countersigned and stamped as a token of your acceptance.

Thanking you,
Yours faithfully,
Rajasthan BESS PrivateLimited

Authorized Signatory

Unconditionally Accepted:
MARC ELECTRO INFRA PVT LTD

Authorized Signatory